

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CORNELIA ROSE LUCAS,

Petitioner

VS.

RYAN DAVID LUCAS,

Respondent

) Case Number: FDI-25-801497

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TO TERMINATE TEMPORARY SPOUSAL SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Cornelia Rose Lucas (Wife) and Respondent Ryan David Lucas (Husband) married on 6/24/2023. Wife contends the parties separated on 6/9/2025, for a marriage of 1 year and 11 months. Husband states the date of separation is TBD. The parties do not have minor children. Wife is represented by attorney Jennifer King. Husband is represented by attorney Audrey Courson.
- 2) On 10/31/2025, a Stipulation and Order was filed which provides:
 - a. Husband shall pay Wife temporary guideline spousal support in the amount of \$2,504 per month. This is based on Husband's base salary of \$315,000 and Wife's base salary of \$172,000.
 - b. The parties shall engage in an annual true-up regarding a two-way Ostler / Smith temporary spousal support order.
 - c. The Stipulation contains no termination date for temporary spousal support.

- 1 3) On for hearing is Husband's Request for Order filed 6/16/2026 wherein Husband asks that the
2 Court terminate temporary spousal support with the final base temporary support payment due on
3 7/1/2026 and the final bonus support true-up to be calculated based upon bonus income received
4 through 7/31/2026. Husband asks in the alternative that the Court set the matter for a long-cause
5 hearing on the issue of spousal support. The Court also reserves jurisdiction over Husband's
6 request for attorney's fees sanctions under Family Code section 271. Husband states that after his
7 support payment on 7/1/2026, he will have paid twelve consecutive months of temporary spousal
8 support to Wife, which is longer than half the length of the marriage. Husband states that Wife is
9 self-supporting. Husband attached a spreadsheet valuing the community estate at \$272,315.73, to
10 be divided equally. Husband's spreadsheet also shows that Husband holds \$317,500 in separate
11 property assets (mostly retirement accounts) and Wife holds \$25,718 in separate property assets
12 (also mostly retirement accounts).
- 13 4) On 6/16/2026, Husband filed a Memorandum of Points and Authorities.
- 14 5) On 7/30/2026, Husband filed an Amended Income and Expense Declaration. Husband states that
15 he is 33 years old and is a Finance Director for SoftBank. Husband states that he earns \$26,250
16 per month in base salary and \$6,300 per month in bonuses. Husband states that he has \$4,000 in
17 cash savings, \$157,500 in easily saleable investments, and \$2,000 in personal property. Husband
18 states that his monthly expenses total \$31,780. Husband states that he owes \$27,000 in debt.
- 19 6) On 8/12/2026, Wife filed a Responsive Declaration asking that the Court deny Husband's
20 request. Wife acknowledges that her salary increased in March 2026 to \$189,200 in annual base
21 salary and states that temporary spousal support should be modified, but not terminated. Wife
22 states that during the parties' marriage, she relocated from London to the Bay Area to support a
23 relocation for Husband's job, and Wife was unemployed for three months as a result. Wife states
24 that she relies on spousal support to help her meet her expenses and pay attorney's fees. Wife
25 states that she has incurred \$96,790.02 in attorney's fees and costs through 8/12/2026. Wife
26 requests \$15,000 in attorney's fees and costs under Family Code section 2030. Wife seeks an
27 additional \$15,000 under Family Code section 271 for fees incurred to respond to the instant
28 Request for Order and because Husband refused to continue the hearing on his Request for Order
29 to a date following the parties' Mandatory Settlement Conference.

- 1 7) On 8/12/2026, Wife's attorney Jennifer King filed a Declaration in Support of Request for
2 Attorney's Fees and Costs, a Memorandum of Points and Authorities, and a Statement of Support
3 Calculation.
- 4 8) On 8/12/2026, Wife filed an Income and Expense Declaration. Wife states that she is 32 years old
5 and is a Principal Customer Success Manager for Intercom, Inc. Wife states she earns \$21,831 per
6 month in base salary plus approximately \$4,000 per month in bonuses. Wife states she has
7 \$24,400 in cash savings, \$39,000 in easily saleable investments, and \$92,000 in personal
8 property. Wife estimates that her monthly expenses total \$12,224. Wife owes approximately
9 \$37,000 in debt. Wife states that she has paid her attorney \$75,083 to date using employment
10 income and a credit card and that she owes an additional \$9,700.
- 11 9) On 8/18/2026, Husband filed a Reply Declaration and Reply Memorandum of Points and
12 Authorities wherein Husband reiterates his original requests, asks the Court to deny Wife's
13 requests for attorney's fees under Family Code sections 2030 and 271, and asks the Court to
14 award him Husband \$8,250 for the attorney's fees and costs he incurred to bring this Request for
15 Order. Husband notes that Wife's 2025 tax returns show that she was able to contribute \$7,000 to
16 her traditional IRA and \$18,732 to her 401(k) in 2025. Husband also argues, "The scale of
17 Petitioner's claimed fees is not commensurate with this case's complexity. This is a twenty-three-
18 month marriage with no children, no real property, and no business valuation issues, and until this
19 motion there had been no substantive motion practice. At comparable hourly rates, Ryan's
20 attorney's fees to date are approximately one-third of the fees Petitioner claims to have incurred,
21 and a substantial portion of Ryan's fees were incurred responding to Petitioner's own broad
22 discovery, including a subpoena seeking approximately seven years of his employment records
23 notwithstanding his prior production of tax returns, W-2s, and paystubs."
- 24 10) On 8/18/2026, Husband's attorney filed a Declaration in Support of Request for Family Code
25 section 271 Sanctions.
- 26 11) The Court notes there is a Mandatory Settlement Conference scheduled in this matter for
27 11/20/2026.
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1 **B. Findings and Order**

- 2 1) Under Family Code section 3603, a temporary spousal support order “may be modified or
3 terminated at any time except as to an amount that accrued before the date of the filing of the
4 notice of motion or order to show cause to modify or terminate.” Family Code section 4320 states
5 in relevant part: “In ordering spousal support under this part, the court shall consider all of the
6 following circumstances:... (l) The goal that the supported party shall be self-supporting within a
7 reasonable period of time. Except in the case of a marriage of long duration as described in
8 Section 4336, a ‘reasonable period of time’ for purposes of this section generally shall be one-half
9 the length of the marriage. However, nothing in this section is intended to limit the court’s
10 discretion to order support for a greater or lesser length of time, based on any of the other factors
11 listed in this section, Section 4336, and the circumstances of the parties.” As stated in *Marriage*
12 *of Left* (2012) 208 Cal.App.4th 1137, 1153, fn. 11, “nothing in section 3600 prevents a trial court
13 from considering the factors listed in section 4320.”
- 14 2) The Court finds that Wife is self-supporting. The Court also finds that, as of July 2026, Husband
15 will have paid Wife temporary spousal support for a period equal to one-half the length of the
16 marriage. The Court finds good cause to terminate temporary spousal support. The final base
17 support amount shall be due 7/1/2026 and the final bonus support true-up shall be calculated
18 based upon bonus income received through 7/31/2026.
- 19 3) The Court finds that a disparity exists in the parties’ access to funds to pay legal fees and that
20 Husband has the ability to contribute to Wife’s attorney’s fees and costs while paying his own
21 attorney’s fees and costs. The Court finds that the amount requested by Wife for need-based
22 attorney’s fees and costs, \$15,000, is just, reasonable, and necessary. Husband shall pay \$15,000
23 to Wife no later than 9/15/2026.
- 24 4) Both parties’ requests for Family Code section 271 attorney’s fees sanctions are denied.
- 25 5) Husband’s attorney shall prepare the Findings and Order After Hearing.
- 26 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
27 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
28 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
29 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the

1 proposed order after hearing directly to the court. Failure to submit the order after hearing within
2 10 days may allow the other party to prepare a proposed order and submit it to the court in
3 accordance with CA Rules of Court, Rule 5.125(d).
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